

Online Safety Act 2023: Explainer

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Online Safety Act: explainer

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What does the Online Safety Act do?

The Online Safety Act 2023 (the Act) is a new set of laws that protects children and adults online. It puts a range of new duties on social media companies and search services, making them more responsible for their users' safety on their platforms. The Act gives providers new duties to implement systems and processes to reduce the risk their services are used for illegal activity, and to take down illegal content when it does appear.

The strongest protections in the Act have been designed for children. Platforms are required to prevent children from accessing harmful and age-inappropriate content and to provide parents and children with clear, accessible ways to report problems.

The Act also protects adult users, ensuring that major platforms are more transparent about which kinds of potentially harmful content they allow, and giving people more control over the types of content they want to see.

Ofcom is the independent regulator of online safety. It sets out steps providers can take to fulfil their safety duties in codes of practice, and has a broad range of powers to assess and enforce compliance. Providers' safety duties are proportionate to factors including the risk of harm to individuals and the size and capacity of each provider. Ofcom is required to take users' rights into account, and providers have simultaneous duties to pay particular regard to users' rights when fulfilling their safety duties.

Who the Act applies to

The Act's duties apply to search services and to services that allow users to post content online or interact with each other. This includes social media services, consumer cloud storage and file-sharing sites, video-sharing platforms, online forums, dating services, and online instant messaging services.

The Act applies to services even if the companies providing them are outside the UK, where they have links to the UK: a significant number of UK users, the UK as a target market, or being capable of access by UK users with a material risk of significant harm to them.

How the Act is being implemented

The Act passed into law on 26 October 2023. Ofcom is leading implementation and is taking a phased approach to bringing duties into effect; the government also needs to make secondary legislation in some areas. Ofcom must develop guidance and codes of practice, consult publicly on drafts, and lay codes before Parliament before they take effect.

Duties about illegal content are now in effect; Ofcom can enforce against the regime from 17 March 2025. In-scope providers had to complete illegal-content risk assessments by 16 March 2025. The illegal harms codes of practice were approved by Parliament after being laid on 16 December 2024.

Duties about content harmful to children — Ofcom published age-assurance guidance in January 2025; the section 81 duty for Part 5 (provider-published pornography) services came into force on 17 January 2025. The protection-of-children codes were laid on 24 April 2025, with the child safety regime fully in effect by Summer 2025.

Duties for categorised services — some platforms must comply with additional transparency and accountability requirements. Category 1, 2A and 2B thresholds were laid via secondary legislation on 16 December 2024.

New offences introduced by the Act

The criminal offences introduced by the Act came into effect on 31 January 2024. They cover: encouraging or assisting serious self-harm; cyberflashing; sending false information intended to cause non-trivial harm; threatening communications; intimate image abuse; and epilepsy trolling. These offences apply directly to the individuals sending the content.

Types of content the Act tackles

Illegal content

The Act requires all companies to take robust action against illegal content and activity: to implement measures reducing the risk their services are used for illegal offending, and to put in place systems for removing illegal content when it appears. Search services have new duties to reduce the risk users encounter illegal content.

The Act sets out a list of **priority offences** reflecting the most serious and prevalent illegal content, against which companies must take proactive measures. Platforms must also remove any other illegal content where there is an individual victim (actual or intended), where it is flagged by users, or where they otherwise become aware of it.

The kinds of illegal content and activity platforms must protect users from include content relating to: child sexual abuse; controlling or coercive behaviour; extreme sexual violence; extreme pornography; fraud; **racially or religiously aggravated public order offences**; inciting violence; illegal immigration and people smuggling; promoting or facilitating suicide; intimate image abuse; selling illegal drugs or weapons; sexual exploitation; and terrorism.

Content harmful to children

Companies whose in-scope sites are likely to be accessed by children must protect children from harmful content and behaviour. Children must be prevented from accessing Primary Priority Content and given age-appropriate access to Priority Content.

Primary Priority Content: pornography; content that encourages, promotes, or provides instructions for self-harm, eating disorders, or suicide.

Priority Content: bullying; abusive or hateful content; content depicting or encouraging serious violence or injury; content encouraging dangerous stunts and challenges; and content encouraging the ingestion, inhalation or exposure to harmful substances.

Adults' control over content they see

Large user-to-user services (Category 1) must offer adult users optional tools giving greater control over the content they see and who they engage with, including the ability to verify identity and reduce interaction from non-verified users. Following Ofcom guidance, Category 1 services must proactively offer tools to reduce the likelihood of encountering certain legal content, including content that encourages suicide, self-harm or eating disorders, and **abusive or hate content including where it is racist, antisemitic, homophobic, or misogynist**. Children are already protected from seeing this content.

Harmful algorithms

The Act requires providers to specifically consider how algorithms could affect users' exposure to illegal content — and children's exposure to content harmful to children — as part of their risk assessments, and to take steps to mitigate identified risks across platform design, functionalities, and algorithms. The law is explicit that harm can arise from the way content is disseminated, such as an algorithm repeatedly pushing content to a child in large volumes over a short period. Categorised services must publish annual transparency reports.

Protecting women and girls

Much of the most harmful illegal online content disproportionately affects women and girls, and the Act requires platforms to proactively tackle it, including harassment, stalking, controlling or coercive behaviour, extreme pornography, and intimate image abuse. Ofcom must produce guidance summarising the measures that can be taken to tackle the abuse women and girls disproportionately face online.

Misinformation and disinformation

The Act takes a proportionate approach, focusing on the greatest risks of harm while protecting freedom of expression. Mis- and disinformation is captured where it is illegal or harmful to children, including illegal state-sponsored disinformation via the Foreign Interference Offence. Category 1 services must also remove certain mis- and

disinformation prohibited in their terms of service. Ofcom must establish an advisory committee on disinformation and misinformation.

How the Act is enforced

Ofcom is the regulator of online safety. Companies can be fined up to £18 million or 10 percent of qualifying worldwide revenue, whichever is greater. Criminal action can be taken against senior managers who fail to comply with information requests, and against companies and senior managers where they fail to comply with enforcement notices relating to specific child safety duties or to child sexual abuse and exploitation. In the most extreme cases, with court agreement, Ofcom can require payment providers, advertisers and internet service providers to stop working with a site (business disruption measures).

Key legislation references

- The Online Safety Act 2023 on legislation.gov.uk — <https://www.legislation.gov.uk/ukpga/2023/50/contents>
- The Online Safety Act 2023 (Priority Offences) (Amendment) Regulations 2024
- The Online Safety Act 2023 (Category 1, Category 2A and Category 2B Threshold Conditions) Regulations 2025